

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

202200567741CUOE: Briana Sandez vs. Miners Ace Hardware Inc

08/26/2026 in Department 44

**Motion for Approval of Private Attys General Act (Cal Labor Code 2698 et seq) Settlement
agreement and Award of Atty Fees and Costs**

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/join/register/iqN7uhQSQMuOqs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion:

Plaintiff’s Motion to Approve PAGA Settlement

Tentative Ruling:

Plaintiff’s Motion is CONTINUED to **October 7, 2026 at 1:30 p.m.** Although the core monetary terms of the proposed PAGA settlement appear fair and adequately supported, Plaintiff’s supplemental papers do not cure all the deficiencies identified in the Court’s July 8, 2026 order, in addition to identifying that the settlement agreement was not previously submitted to the LWDA as represented in the moving papers and required by Labor Code section 2699. In particular, the supplemental valuation does not address several claims asserted in the operative First Amended Complaint and encompassed by the proposed release; the record does not establish submission to the LWDA of the settlement in its presently revised form; and the proposed change in the disposition of uncashed checks remains unresolved and inconsistent with both the executed Settlement Agreement and the proposed employee Cover Letter.

Plaintiff’s counsel shall give notice.